



Northern Ireland (Young Persons) Act 1974

1974 CHAPTER 33

An Act to make temporary provision for the holding in custody of young persons charged with certain offences in Northern Ireland. [31st July 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Holding in custody of young persons charged with certain offences.

1.—(1) This Act applies to any young person charged with a scheduled offence.

(2) In this section—

“young person” means a person who has attained the age of 14 and is under the age of 17; and

“scheduled offence” has the same meaning as it has for the time being in the Northern Ireland (Emergency Provisions) Act 1973.

(3) Where a person to whom this Act applies has been remanded or committed for trial as respects the scheduled offence and is not released on bail, he may—

(a) notwithstanding the provisions of any enactment, and

(b) whether or not he was remanded or committed for trial at a time when this section was not in force,

be held in custody in such prison or other place as may be specified in a direction given by the Secretary of State under this section (in this Act referred to as “a direction”).

(4) The Secretary of State may give a direction in respect of a person to whom this Act applies if he considers that it is necessary, in order to prevent his escape or to ensure his safety or the safety of others, to make special arrangements as to the place at which that person is to be held in custody while on remand or while committed for trial.

(5) A direction may be given by the Secretary of State at any time after the young person to whom it relates has been charged with a scheduled offence, and may be varied or revoked by a further direction.

(6) In this section "enactment" includes an enactment of the Parliament of Northern Ireland and a Measure of the Northern Ireland Assembly.

2.—(1) A direction shall, if it has not previously ceased to have effect, cease to have effect at the expiration of such period as may be specified in the direction (being a period not exceeding two months beginning with the date of the direction), unless continued in force by a further direction. Directions under section 1.

(2) Where, by virtue of a direction, a young person is held in custody in a prison or other place and the direction ceases to have effect (whether or not by reason of the expiry or cesser of section 1 above) it shall be lawful for him to continue to be held in custody in that prison or place until arrangements can be made for him to be held in custody in accordance with the law then applicable to his case.

(3) Nothing in subsection (2) above shall be taken to make lawful the holding in custody of any person who would, disregarding that subsection, be entitled to be released from custody.

3.—(1) Section 1 above shall expire with 24th January 1975, unless continued in force by an order under this section. Duration, expiry and revival of section 1.

(2) The Secretary of State may by order provide—

(a) that section 1 above (whether or not in force by virtue of an order under this section) shall continue in force for a period not exceeding one year from the coming into operation of the order ;

(b) that section 1 above shall cease to be in force ; or

(c) where section 1 above is for the time being not in force, that it shall come into force again and remain in force for a period not exceeding one year from the coming into operation of the order.

(3) The power to make an order under this section shall be exercisable by statutory instrument.

(4) No order shall be made under this section unless a draft of the order has been approved by resolution of each House of Parliament or it is declared in the order that it appears to the Secretary of State that by reason of urgency it is necessary to make the order without a draft having been so approved.

(5) Orders under this section (except an order of which a draft has been so approved) shall be laid before Parliament after being made and, if at the end of the period of 40 days (computed in accordance with section 7(1) of the Statutory Instruments Act 1946) after the day on which the Secretary of State made an order a resolution has not been passed by each House approving the order in question, the order shall then cease to have effect (but without prejudice to anything previously done or to the making of a new order).

1946 c. 36.

Short title
and extent.

4. This Act may be cited as the Northern Ireland (Young Persons) Act 1974 and shall extend to Northern Ireland only.